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U.S. Department of State Diplomacy in Action

Cameroon

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Cameroon is a republic dominated by a strong presidency. Since the early years of independence, the Cameroon People's Democratic Movement (CPDM) has remained in power. In 1997 CPDM leader Paul Biya won re-election as President in a vote boycotted by the three main opposition parties. Marred by a wide range of procedural flaws, the election generally was considered by observers not to be free and fair. Legislative and municipal elections held during the year were dominated by the CPDM and flawed with irregularities; however, most local and international observers considered them to be transparent. The President retains the power to control legislation or to rule by decree, and has used his control of the legislature to change the Constitution. The Government remained highly centralized and dominated by the presidency. The judiciary was subject to political influence and suffered from corruption and inefficiency.

Internal security responsibilities, also dominated by the Presidency, were shared by the national police (DGSN), the National Intelligence Service (DGRE), the Gendarmerie, the Ministry of Territorial Administration, military intelligence, the army, and to a lesser extent, the Presidential Guard. The police and the Gendarmerie have dominant roles in enforcing internal security laws. The civilian Minister of Defense and the civilian head of police also were responsible for internal security. Security forces continued to commit numerous serious human rights abuses.

The majority of the population of 15.2 million was rural; agriculture accounted for 28.8 percent of gross domestic product (GDP). Economic growth has continued over the past 5 years, despite decreases in world prices for the country's major primary exports, and gross national product growth has averaged 4 to 5 percent annually. However, economic recovery continued to be inhibited by a large inefficient parastatal sector, excessive public sector employment, and the Government's inability to deregulate the economy to attract more investment. Widespread corruption in government and business also impeded growth. Members of the Beti and Bulu ethnic groups dominated government, civil service, and the management of state-owned businesses.

The Government's human rights record remained poor, and it continued to commit numerous serious abuses. Citizens' ability to change their government remained limited. Security forces committed numerous unlawful killings and were responsible for disappearances. They also tortured, beat, and otherwise abused detainees and prisoners, generally with impunity. However, the Government prosecuted a few offenders. Prison conditions remained harsh and life threatening. Security forces continued to arrest and detain arbitrarily various opposition politicians, local

human rights monitors, and other citizens, often holding them for prolonged periods, often without charges or a chance for trial and, at times, incommunicado. The judiciary remained corrupt, inefficient, and subject to political influence. The Government infringed on citizens' privacy, and monitored and harassed some opposition activists. The Government continued to impose limits on freedom of speech and press and harassed journalists. The Government restricted freedom of assembly and association. Security forces limited freedom of movement. Violence and discrimination against women and child abuse remained serious problems. Discrimination against indigenous Pygmies continued. Societal discrimination based on religion persisted in some areas; societal discrimination against ethnic minorities continued. The Government continued to infringe on worker rights and restricted the activities of independent labor organizations. Child labor remained a serious problem. Slavery reportedly persisted in northern parts of the country. Forced labor, including forced child labor, was a problem. There were reports of trafficking in persons, primarily children, for purposes of forced labor. Mob violence continued to result in some deaths.

RESPECT FOR HUMAN RIGHTS

Section 1 Respect for the Integrity of the Person, Including Freedom From:

a. Arbitrary or Unlawful Deprivation of Life

There were no confirmed reports of politically motivated killings; however, the security forces continued to use excessive, lethal force against private citizens and committed numerous unlawful killings. During 2001 Douala's military anticrime unit, the Operational Command, reportedly was suspended amid increasing reports of human rights abuses; the status of the Command was unknown at year's end. There were reports that prior to suspension, Command leaders ordered the execution of the 81 detainees who remained in the special Command prison facility, Kosovo.

The Operational Command operated above the authority of other security forces and killed some suspects in shootouts and high-speed car chases. It also reportedly used a network of informants, including a large number of convicted criminals and prison officials, to obtain the names of suspected bandits who the Command then arrested and summarily executed (see Section 1.b.). Conservative estimates placed the number killed in the hundreds, but Cardinal Tumi, the Archbishop of Douala, believes the number may range as high as 1,000. The Operational Command also used neighborhood sweeps to search for criminals, occasionally executing suspects for minor offenses such as smoking marijuana. Press and other reports alleged that the Operational Command has several mass graves, including one in the "Forest of Monkeys" (Bois des Singes) and another off the "Old Road" between Douala and Edea, where bodies were abandoned in pits or buried.

Security authorities in the remote North and Far North Provinces also were accused of unlawful killings; however, there were fewer reported incidents than during the previous year. During the year, the security situation in the northern provinces appeared to have improved, but there still were occasional accusations of summary executions following acts of banditry. Local human rights groups noted that local authorities, even the special anti-gang units, paid more attention to due process than in previous years; they believed that the paramilitary forces received strict instructions to restrain their activities in an attempt to avoid another scandal that would embarrass the Government. However, authorities in the region maintained that the anti-gang units largely have completed their mission and that the remaining bandits were living in fear, thus eliminating the necessity for excessive use of force. They also noted a significant drop in crime in the region.

An elite crime-fighting unit, the Light Intervention Battalion (BLI), which received extensive training from Israeli military consultants, became operational in 2001 and reported directly to the Presidency. BLI members have been accused of conducting summary judgements against suspected criminals. Preliminary reports indicated that this group has benefited from improved training and intelligence gathering methods; however, no further information was available at year's end.

On January 25, army sergeant Nje stabbed to death 22-year-old Isidore Usabo Lappe, in Douala's popular "CCC" quarter. The killing followed a private dispute between Usabo Lappe and the sergeant's girlfriend. Nje was arrested and remained in police custody on murder charges at year's end.

On February 23, a gendarme killed 26-year-old Pierre Kewe in the Yaounde neighborhood of Elig-Edzoa. Kewe's older brother summoned a team of gendarmes to help resolve a dispute, and Kewe refused their order that he remain inside the house. During his attempt to leave, a gendarme shot him. The authorities arrested the gendarme, who was in detention awaiting trial at year's end.

During the year, the Government investigated a few cases of security personnel accused of violating the law. For example, on January 29, the Douala Military Tribunal began trying Operational Command Sergeant Jean Claude Mbita on charges of assault occasioning death in the 2000 shooting of Luc-Benoit Bassilekin. After several postponements, the trial started on November 26.

On April 23, a military trial began for Colonel Bobbo Ousmanou and seven other army officers charged with the execution of nine youths in Bepanda in January 2001. On July 9, the military tribunal sentenced two of the higher ranking officials for disobeying orders; six others were acquitted (see Section 1.b.).

In April the Douala High Instance Court began hearings on the case of the 2000 torture death of Emmanuel Ebanda. The prosecutor requested life-imprisonment for police officers Biyick Mang, Peter Enonguene, and Elouga. The trial was ongoing at year's end.

There were no further developments in the following 2001 cases: The torture death of a 23-year-old man named Apah in Njikwa, Momo Division, Northwest Province; the reported arrest and execution of Hamadou Kadri by the BLI based in Maroua; the killing of Eloi Sanda Abba by a gendarme at the students residential quarters of Bonamoussadi, in Yaounde; and the shooting death of Aliou Oumarou by police.

There were no further developments in the following 2000 cases: the January shooting death of Alhadji Bapetel at the Douala port; the May detention, torture, and killing of Edouard Leuat; the May killing of Laurent Abbe; the May killings of two women in Yaounde; the June killing of two bandits; the September torture death of Mathew Titiahonjo; and the October killing of Paul Petchucke.

Numerous prisoners died in custody due to abuse inflicted by security forces and harsh prison conditions and inadequate medical treatment (see Section 1.c.).

Mob violence and summary justice directed against suspected thieves and those suspected of practicing witchcraft and other crimes reportedly continued to result in an increased number of deaths and serious injuries. For example, in early March, an angry mob in the Oyom Aban neighborhood of Yaounde beat to death Emile Eyenga, a 34-year-old bandit who previously had been arrested and released on several occasions. Aban was caught burglarizing a private residence.

In early August, the gendarmerie company commander for Ngoketunjia Division, North West Province, stated that angry mobs lynched three persons caught stealing. The commander severely criticized the "jungle justice" and asked the citizens of Ngoketunjia to inform security forces of the presence of any suspected criminal in their respective areas.

On August 27, inhabitants of the Douala neighborhood of Bepanda beat to death a 26-year-old thief for stealing a goat. No investigation has been reported.

There were no further developments in the 2001 beating death cases of Joseph Nzelandnyuy or Abdulai Fonyuy.

b. Disappearance

There were reports of disappearances of persons in the custody of security forces. Some disappearances may be attributed to summary executions by security forces in Douala or the northern regions (see Section 1.a.); in these instances, bodies rarely were found although the suspects were presumed dead.

On March 13, Dieudonne Atsako, Steve Kehebe, Etienne Kuete, Talla, Blaise Nokam, Victory Tegou, Jules Nouma, Jean Alain Kenfack, and Croisil Moutsoul were arrested and detained in the Bafoussam gendarmerie brigade. Following widespread rumors of their deaths at the hands of gendarmes, the National Commission on Human Rights and Freedoms (NCHRF) and the West Gendarmerie Legion conducted an investigation. On April 18, the Minister of Communication, Jacques Fame Ndongo, stated that the nine were alive and confirmed that the Gendarmerie Legion and the NCHRF were conducting an investigation into the case. Later in April, the NCHRF issued a press release denying allegations that the nine had disappeared. At year's end, the Government had not produced proof that the nine were alive.

In January 2001, the Douala Operational Command arrested Marc Etah, Frederic Nguffo, Chatry Kuete, Jean Roger Tchiwan, Eric Chia, Charles Kouatou, Effician Chia, Elysee Kouatou, and Fabrice Kouate, who were suspected of stealing a gas canister in the Bepanda District of Douala. Initially the families of the detained "Bepanda 9" were accorded visiting rights; however, these rights were abrogated as of January 27, 2001. The case drew both national and international attention, and many observers believed the Douala Operational Command summarily executed the nine youths. Douala authorities attested to the youths' arrests but denied any executions and refused to produce verification of the youths' continued wellbeing. The victims' families formed another group, the Committee for the Defense of the Nine (or C9 as they were known domestically) and held weekly protests, which police often forcibly dispersed, demanding the location of the nine youths. In March 2001, President Biya ordered an investigation into the disappearance of the Bepanda 9 and transferred or replaced several members of the Operational Command. In April 2001, authorities arrested Colonel Ousmanou and seven other officers of the Operational Command. In November 2001, the military trial of the eight officers was referred to the High Court of Yaounde after the Court of First Instance dismissed the case due to a technicality. The trial was closed to the public, and the Government refused to release the court's findings or to consider a civilian trial for the officers. After several postponements, on July 9, the High Court of Yaounde finally ruled on the case. Although the eight officers initially were prosecuted on charges of murder, torture, corruption, and violation of instructions, the High Court convicted two of the eight officers on charges of disobeying orders and sentenced Colonel Ousmanou to 3 years probation and Captain Jean Jacques Abah Ndzengue to 16 months in jail, respectively. Samuel Houag, Nicolas Eyong Taku, and Luc Evoundou were found not guilty for lack of evidence. Major Pascal Yeremou Nyamsi, Captain Onana Ambassa, and adjunct chief Adrumpai were found not guilty by benefit of doubt. The C9 have appealed the ruling.

c. Torture and Other Cruel, Inhuman, or Degrading Treatment or Punishment

The law prohibits such practices; however, there were numerous credible reports that security forces, including the Operational Command, continued to torture, beat, and otherwise abuse prisoners and detainees. There were reports that security forces, including the Operational Command, detained persons at specific sites where they tortured and beat detainees. The Operational Command reportedly tortured some persons before summarily executing them (see Section 1.a.). Security forces also reportedly subjected women, children, and elderly persons to abuse. Most cases apparently were not reported to the relevant authorities because of ignorance, lack of confidence, or fear of reprisal.

In New Bell and other non-maximum security penal detention centers, prison guards inflicted beatings, and prisoners reportedly were chained or at times flogged in their cells. Authorities often administered beatings in temporary holding cells within a police or gendarme facility. Two forms of physical abuse commonly reported by detainees were the "bastinade" in which the victim was beaten on the soles of the feet and the "balancoire" where the victim was hung from a rod and beaten (often on the genitals) with his hands tied behind his back. Many nonviolent political activists have experienced this abuse during brief detentions that followed participation in antigovernment demonstrations or opposition party political rallies.

Security forces continued to subject prisoners and detainees to degrading treatment including stripping, confinement in severely overcrowded cells, and denial of access to toilets or other sanitation facilities. Police and gendarmes often beat detainees to extract confessions as well as the names and whereabouts of alleged criminals. Pretrial detainees sometimes were required, under threat of abuse, to pay "cell fees," which essentially was a bribe paid to prison guards to prevent further abuse.

Security forces beat persons while arresting them, particularly under Operation Harmattan, an anti-crime operation in Douala. For example, on April 4, soldiers and gendarmes cordoned off Koupa Kagnam and Koumenke, two villages of the Noun Division, West Province, and raided houses, beating and arresting scores of men and women. According to official statements, Gabriel Essoa Eloi, Koutaba's Sous-prefet, ordered the operation when unidentified individuals allegedly tried to break into his office and steal election-related documents. Essoa Eloi "was told" that the perpetrators were from the two villages. CDU Chairman, Dr. Adamou Ndam Njoya, criticized the operation, claiming it was aimed at intimidating members of his party 2 months before national elections. On April 8, authorities released all those arrested.

Security forces harassed and threatened journalists (see Section 2.a.). Security forces also frequently used roadblocks to exact bribes or disrupt opposition political activities and injured persons they believed tried to evade checkpoints (see Section 2.d.).

On March 10, soldiers of the Edea Military Regiment in the Sanaga Maritime Division of Littoral Province arrested, beat, and severely injured Samuel Mben Mben, publisher of Habeas Corpus after a woman accused him of helping men rob her. The gendarmes then took Mben Mben to the gendarmerie brigade where they released him after the intervention of his lawyer, family, and the Sanaga Maritime Senior Divisional Officer (who also was the Prefet). Mben Mben later said that he was missing \$155 (104,000 CFA francs).

On March 14, police officers beat and injured Narcisse Kouokam, a nationally known comedian, in Yaounde. In a statement to the press, Kouokam said that the officers recognized him and sought to "punish him" for his performances criticizing the country's malfeasance. Narcisse Kouokam filed a complaint against his attackers, which was pending at year's end.

On June 28, Douala police officers arrested Jean Ren Ndouma on allegations of theft complicity. On July 18, Ndouma was transferred to the Douala New Bell Prison where his family learned he had been tortured seriously, particularly by police officer Daouda Mama. Ndouma had been handcuffed and hung by the hands, which resulted in severe gashes on his wrists. It was unknown if there was any action taken in this case.

There were no new developments in the following 2001 cases: The January kidnaping of Hortense Toukam; the March beating and attempted strangling by gendarmes of Pierre Nyemeck Ntamack; the May arrest and torture by police of Jacques Zoua, a member of a Maroua-based human rights NGO; and the June arrest and torture by security forces of many persons during neighborhood sweeps in Kodogo and Garoua.

There were no developments in the following 2000 cases: The death of Magloire Evoutain; the January torturing of customs inspector Vincent Nkengfue; the January injuring and beating of several students when a demonstration was dispersed forcibly; the March torturing of Jean Paul Kentsa and two others; the April beating and torturing of a foreign volunteer teacher; the April injuring of Cecile Ngono; the April beating of Nicole Ajong; the April beating of parishioners at Notre Dame De Sept Douleurs; the May torturing of Achille Tehoumba Heubo; the May beating of Madeleine Ngo Songane; the May torturing to death of Mathew Titiahonjo; the May beating of several student demonstrators; the June beating of Amelie, a female soccer player; the June injuring of several persons in a bar; the June beating of Beatrice Elouga; the June assault of numerous citizens; the September rape of two girls; and the November beating of a journalist.

A minor number of security force officers have received jail sentences and/or severe sanctions for the misconduct. For example, on February 27, the Bafang, Upper Nkam Division, West Province High Instance Court sentenced Police Commissioner Simon Menzouo and policeman Jules Oscar Soboa to 5 years in jail and damages of \$10,000 (6.5 million CFA francs) after finding the two guilty of torturing a police detainee to death in 1999. The Court awarded the damages to the victim's family.

On September 16, Pierre Minlo Medjo, Delegate General for National Security (DGSN), issued a press release stating that three police officers serving at the Mbalmayo Nyong So'o Division in Center Province's Public Security Police Station were arrested and arraigned by a Mbalmayo prosecutor who ordered their detention. On September 7, the officers, Jean Christophe Avom, Appolinaire Eva Ntyam, and Francois Jiande, had shot and killed Thomas Alima during an arrest. According to Minlo's press release, the police officers misused their arms in an illegal manner.

The Government has made some efforts to minimize security forces' abuse. For example, in a January 25 speech to newly trained gendarmes of an elite unit, Remy Ze Meka, the Secretary of State for Defense in Charge of the National Gendarmerie, reinforced that security forces must respect citizens' rights. There was no evidence during the year that the January 25 speech affected a significant change in security force behavior, and in the vast majority of cases of torture or abuse, the Government rarely investigated or punished any of the officials involved.

Mob violence, including beating and torture, directed against suspected thieves continued to result in a number of deaths (see Section 1.a.).

Prison conditions remained harsh and life threatening. Prisons were seriously overcrowded, unsanitary, and inadequate, especially outside major urban areas. Due to a lack of funds, serious deficiencies in food, health care, and sanitation were common in almost all prisons, including "private prisons" in the north operated by traditional rulers. Prisoners were kept in dilapidated colonial-era prisons, where the number of detainees was four to five times the original capacity. Health and medical care were almost nonexistent, and prisoners' families were expected to

provide food for their relatives in prison. Douala's New Bell Prison contained 7 water taps for a reported 3,500 prisoners, contributing to poor hygiene, illness, and death. Prison officials tortured, beat, and otherwise abused prisoners. Prisoners routinely died due to harsh prison conditions and inadequate medical treatment.

On January 14, the Douala branch of the Action of Christians for the Abolition of Torture (ACAT) issued a document, which stated that 17 detainees died in November 2001 and 21 died in December 2001 at the Douala New Bell prison due to a lack of adequate medical care.

On March 25, 38-year-old Barthelemy Kengne, a businessman in Bafoussam, the West Province capital, was found dead in his cell at the Bafoussaman Gendarmerie Brigade. Gendarmes had detained Kengne for 10 days on accessory after the fact charges and during his detention chained his feet and hands and shot him in the foot, allegedly because of an escape attempt. Kengue's family was convinced his death resulted from torture. On April 23, the Government denied the allegations, stating that Kengne's cellmate had strangled Kengne to death following a dispute. The Minister stated that an investigation was ongoing.

On July 7, 19-year-old convicted thief Aime Martial Mbong died in his cell at the Douala Judicial police precinct, allegedly because of torture inflicted in custody. Due to inaccurate information, his parents initially were unable to locate him and on July 9, found his body in the morgue of Douala's Laquintinie Hospital. Both the provincial security office and the judicial police have accused the other of causing Mbong's death. An investigation was ongoing at year's end.

In an April report presented to the U.N. Human Rights Commission in Geneva, the Cameroonian League for Human Rights provided figures for the country's principal prison facilities. Yaounde-Kondengui prison contained 9,530 detainees for 2,500 places; Douala New Bell prison--7,000 detainees for 1,500 places; Bamenda prison--4,855 detainees for 330 places; Bafoussam prison--5,225 detainees for 850 places; Edea prison--4,255 detainees for 750 places; Dschang prison--6,845 detainees for 715 places; Garoua prison--4,636 detainees for 280 places; and Nkongsamba prison--8,753 detainees for 620 places. The figures were not corroborated independently. Overcrowding was exacerbated by the large number of long pretrial detentions and the practice of "Friday arrests" (see Section 1.d.). According to credible press reports, more than 1,400 of the inmates of the Douala prison were pretrial detainees.

From September 1 to 14, Dr. Vera Mlangazuwa Chirwa, Special Rapporteur on Prisons and the Conditions of Detention in Africa, working with the African Commission for Human and People's Rights, visited seven prisons (Yaounde, Bafoussam, Douala, Bamenda, Garoua, Maroua, and Bafang), five gendarmerie detention cells, and five police station detention cells. In addition to those officially selected prisons and detention cells, Dr. Mlangazuwa made surprise visits to other prisons. Her team addressed approximately 6,000 prisoners (roughly 28 percent of the prison population) and personally interviewed 150 detainees. In her September 13 assessment of the visit, Mlangazuwa said that congestion, poor nutrition, and lack of adequate health care were principal problems in the prisons; however, she noted that there was a productive prisoner work program.

Corruption among prison personnel was widespread. Prisoners sometimes could "buy" special favors or treatment, including temporary freedom. Credible reports from Bafoussam Central prison indicated that freedom between 6 a.m. and 6 p.m. was available daily to any prisoner who could afford the superintendent's weekly fee of \$20 (15,000 CFA francs). Prisoners in Bafoussam reportedly used their purchased freedom to steal the following week's extortionate fees.

The law specifies that children should not be detained without trial beyond 3 months after an investigation; however, the Government detained children for longer periods of time. Juvenile prisoners often were incarcerated with adults, occasionally in the same cells or wards. There were credible reports that adult inmates sexually abused juvenile prisoners. Persons awaiting trial routinely were held in cells with convicted criminals. There were few detention centers for women, who routinely were held in prison complexes with men, occasionally in the same cells. Mothers often were incarcerated with their children or babies. Some high-profile prisoners were able to avoid some of the abuse that security forces routinely inflicted on other criminals. High-profile prisoners often were kept in more privileged wings of certain prisons where they enjoyed relatively lenient treatment.

The NCHRF stated in a February 2001 media interview that "some people are just forgotten in prison." For example, in September the Government daily newspaper, Cameroon Tribune, reported that 58-year-old prisoner Pierre Owono Mvondo was forgotten in prison. Between 1969 and 1972, Owono Mvondo received two prison sentences amounting to 20 years in jail. After serving the 20 years, he was unable to afford a lawyer. Apparently his case was forgotten or misplaced, and his release request was denied. In 2001 Owono Mvondo had his case referred to Monsignor André Wouking, the Archbishop of Yaounde, who visited the Yaounde-Kondengui central prison. As a result of the Archbishop's intervention, an August 23 court ruling freed Owono Mvondo and on August 29, after having served 13 extra years in jail, he was set free. Owono Mvondo was not awarded compensating damages.

In 2001 the Cameroon Organization for Citizens' Rights and Freedoms disclosed the results of an investigation that it conducted in the Yaounde Central Prison. According to those results, several persons who had completed their prison terms or had been released by a court ruling still were in detention, including prisoners whose files had been lost and were subsequently not given a court date. One detainee had been in jail for 6 years without a trial. The organization worked with the prosecutor's office to secure the release of approximately 100 of the most egregious cases.

On January 29, the prisoners of the Yaounde Kondengui prison addressed a letter to the Minister of Justice and various newspapers in which they complained about their conditions. The letter indicated that of the 3,600 persons held in the prison, approximately 3,000 still were awaiting trial. The prisoners threatened to riot and go on hunger strikes; however, there were no reports that this occurred.

The Government continued two programs for the renovation and humanization of prisons, and feasibility studies were in progress for the construction of new prisons in Yaounde, Douala, and other cities at year's end.

In the north, the Government permitted traditional Lamibe (chiefs) to detain persons outside the government penitentiary system, in effect creating "private prisons." Private prisons within the palaces of traditional chiefs Rey Boubba, Gashiga, Bibemi, and Tcheboa had a reputation of serious mistreatment. Members of the National Union for Democracy and Progress (UNDP) party have alleged that other UNDP members have been detained in these private prisons and that some have died from mistreatment.

The Government has granted international humanitarian organizations access to prisoners. Both the Cameroonian Red Cross and the NCHRF infrequently visited prisons during the year. The International Committee of the Red Cross (ICRC) continued to visit prisons. Although the ICRC does not release its findings publicly, the Government generally complied with its agreement with the ICRC.

d. Arbitrary Arrest, Detention, or Exile

The law prohibits arbitrary arrest and detention and requires an arrest warrant except when the criminal is caught in the act; however, security forces continued to arrest and detain citizens arbitrarily. The law also stipulates that detainees must be brought promptly before a magistrate; however, arbitrary prolonged detention remained a serious problem and sometimes persons were held incommunicado for months or even years. For example, Souley Bobo, who was arrested in 1992 on murder charges, never appeared before the prosecutor, and Michel Sighanou, a juvenile who was transferred from the Yabassi prison in 1996, has been awaiting trial for more than 5 years. Some persons were detained for several months simply because they were unable to present identification to authorities.

Police legally may detain a person in connection with a common crime for up to 24 hours, renewable three times, before bringing charges. The law provides for the right to judicial review of the legality of detention only in the two Anglophone provinces. Otherwise, the French legal tradition applies, precluding judicial authorities from acting on a case until the administrative authority that ordered the detention turns the case over to the prosecutor. After a magistrate has issued a warrant to bring the case to trial, he may hold the detainee in administrative or "pretrial detention" indefinitely, pending court action. Such detention often was prolonged, due to the understaffed and mismanaged court system. The law permits detention without charge by administrative authorities for renewable periods of 15 days, ostensibly to combat banditry and maintain public order. Persons taken into detention frequently were denied access to both legal counsel and family members. The law permits release on bail only in the Anglophone provinces, where the legal system includes features of British common law; however, in practice bail was granted infrequently.

Police and gendarmes often arrested persons on spurious charges on Fridays at mid-day or in the afternoon. While the law provides for a judicial review of an arrest within 24 hours, the courts did not convene sessions on the weekend, so the detainee remains in detention until at least Monday. Police and gendarmes commonly accepted bribes to make such "Friday arrests" from persons who had private grievances against the person arrested. There were no known cases of policemen or gendarmes that were sanctioned or punished for this practice.

There were reports that security forces, including the Operational Command, detained persons at specific sites where they tortured and beat detainees (see Section 1.a.).

Security forces also continued to arrest and arbitrarily detain various opposition politicians, local human rights monitors, journalists, and other critics of the Government, often holding them for prolonged periods, without charges or a chance for trial and, at times, incommunicado (see Sections 2.a. and 4). For example, on January 17, police officers in Douala arrested and detained Mboua Massok, an opposition political activist, for approximately 5 hours for distributing pamphlets at the entrance of the Akwa technical school, in support of salary increases for secondary education teachers. He later was charged with disturbance of public order and released.

On February 13, Dominique Djeukam Tchameni, an opposition leader and human rights activist, was held for approximately 10 hours at the Douala premises of the Littoral Provincial Delegation for National Security. Djeukam Tchameni had gone to the police headquarters to request that his previously confiscated passport be returned to him. Police officers continuously threatened Djeukam Tchameni during his 10-hour detention, and his passport was not returned upon his release.

In March the police began Operation Harmattan in an effort to rid Yaounde and Douala of crime. Police used Operation Harmattan as a pretext for committing numerous abuses, including roadblocks, identity checks, house searches, and raids of nightclubs (see Section 1.f.). Gendarmes of the Operation detained for questioning 2,792 persons in March and April; it was not known if any had been charged at year's end.

On April 18, gendarme officers arrested a local embassy guard after his employers accused him of distributing leaflets calling for a guard strike, even though striking is not illegal. The guard was detained for 72 hours and released without charges. Authorities arrested at least one other guard at an embassy residence who also was released.

In late July, the State Prosecutor interrogated Former Minister of Posts and Telecommunications Mounchipou Seidou, and in November he ordered that the former minister be brought to trial.

On September 27, the police arrested human rights activist Albert Mukong and 19 other Southern Cameroons National Council (SCNC) activists in Mamfe to prevent them from taking any action on October 1, the date associated with the Anglophone Cameroon independence movement. They were released on October 22, pending trial on sedition charges (see Section 3).

There were no developments in the 2001 arrest of 50 demonstrators and three men from Jakiri following the October SCNC demonstrations.

There were no developments in the following arrests in 2000: The March arrests of Catherine Yami and Roger Tankeu, respectively the Social Democratic Front (SDF) president for the Bassamba electoral district and the SDF West provincial coordinator; the April arrests of several parishioners at Notre Dame de Sept Douleurs; and the June arrest of Beatrice Elouga.

The Government did not use forced exile; however, some human rights monitors or political opponents who considered themselves threatened by the Government left the country voluntarily and declared themselves to be in political exile.

There were no further developments in the 2001 alleged bewitching case against Iyassa Anou, Joseph Regeant, Johnson Mambo Naseri, Mathew Ajong Awor, Christian Buma, Francisca Nyando, and James Okenye.

e. Denial of Fair Public Trial

The Constitution provides for an independent judiciary; however, the judiciary remained highly subject to political influence. Corruption and inefficiency remained serious problems. The court system remained technically part of the executive branch, subordinate to the Ministry of Justice. The Constitution specifies that the President is the guarantor of the legal system's independence. He also appoints judges with the advice of the Supreme Council of the Magistrature. Some politically sensitive cases never were heard by the courts. However, the judiciary has shown some modest signs of growing independence. For example, the courts repeatedly ordered the Ministry of Territorial Administration to desist from seizing print runs of newspapers critical of the Government.

The court system includes the Supreme Court, a Court of Appeals in each of the 10 provinces, and courts of first instance in each of the country's 58 divisions.

Military tribunals may exercise jurisdiction over civilians not only when the President declares martial law, but also in cases involving civil unrest or organized armed violence. Military tribunals also have jurisdiction over gang crimes, banditry, and highway robbery. The Government interpreted these guidelines quite broadly and sometimes used military courts to try matters concerning dissident groups and political opponents. Military trials often were subject to irregularities and political influence.

The legal system includes both national law and customary law, and many cases can be tried using either. Customary law was based upon the traditions of the ethnic group predominant in the region and was adjudicated by traditional authorities of that group. In some areas, traditional courts reportedly have tried persons accused of such offenses as practicing witchcraft by subjecting them to various ordeals, such as drinking poison. There were no known incidents during the year.

Customary courts may exercise jurisdiction only with the consent of both parties to a case. Either party has the right to have the case heard by a national rather than a customary court; customary law is deemed valid only when it is not "repugnant to natural justice, equity, and good conscience." However, many citizens in rural areas remained unaware of their rights under civil law and were taught that customary laws form the rules by which they must abide. Consequently, traditional courts remained important in rural areas and served as a primary means for settling disputes. Most traditional courts permitted appeal of their decisions to traditional authorities of higher rank.

The legal structure is influenced strongly by the French legal system, although in the two Anglophone provinces certain aspects of the Anglo-Saxon tradition apply. The Constitution provides for a fair public hearing in which the defendant is presumed innocent. Because appointed attorneys received little compensation, the quality of legal representation for indigent clients often was poor. The Bar Association and some voluntary organizations, such as the Cameroonian Association of Female Jurists, offered free assistance in some cases. Trials normally were public, except in cases with political overtones and judged disruptive of social peace.

Political bias often brought trials to a halt or resulted in an extremely long process, with extended court recesses. Powerful political or business interests appeared to enjoy virtual immunity from prosecution; some politically sensitive cases were settled with a payoff. Private journalists, political opponents, and critics of the Government often were charged or held and sometimes jailed under libel statutes considered by many observers as unduly restrictive of press freedom (see Section 2.a.).

On February 4, Amadou Ali, the Minister of State for Justice and Keeper of the Seals, severely criticized the "evils of the judiciary" in his opening remarks during a meeting with head justices of the different courts of appeal. He criticized violations of procedure, delayed judgements, and illegal detention, which he believed caused some observers to refer to court decisions as "judicial robbery" and gave the judiciary a bad image and weakened its powers. The Minister of State called on his collaborators to take a firm stance in fighting crime throughout the country.

The Government held a number of political prisoners, including Anglophones; however, there were no reliable estimates of numbers held at year's end.

Titus Edzoa, former Minister of Health and long-time presidential aide who had declared himself a candidate to oppose President Biya in the 1997 election, and Michel Thierry Atangana, his campaign manager, remained incarcerated at the maximum security gendarmerie headquarters with very limited access to visitors at year's end.

f. Arbitrary Interference with Privacy, Family, Home, or Correspondence

The Constitution prohibits such actions; however, these rights were subject to the "higher interests of the State," and there were numerous, credible reports that police and gendarmes harassed citizens, conducted searches without warrants, and opened or seized mail. The Government continued to keep some opposition activists and dissidents under surveillance. Police sometimes punished family members and neighbors of criminal suspects.

The law permits a police officer to enter a private home during daylight hours without a warrant if he is pursuing an inquiry and has reason to suspect that a crime has been committed. The officer must have a warrant to make such a search after dark; however, a police officer may enter a private home at any time in pursuit of a criminal observed committing a crime.

An administrative authority may authorize police to conduct neighborhood sweeps in search of suspected criminals or stolen or illegal goods without individual warrants. Such sweeps were conducted frequently. Sweeps involving forced entry into homes continued to occur in Yaounde and Douala, especially as part of Operation Harmattan (see Section 1.c.). An increase in crime over the years has led to a dramatic increase in the number of such sweeps, called "kali-kali" or "raffles" in Douala and Yaounde, respectively. Typically, security forces seal off a neighborhood, systematically search homes, arrest persons arbitrarily, and seize suspicious or illegal articles. There were credible reports that security forces used these sweeps as a pretext to loot homes and arbitrarily arrest persons for minor offenses, such as not possessing identity cards (see Section 2.d.). For example, a police patrol raided the American Bar, a gambling and drinking establishment in Douala's Bepanda neighborhood. Under the guise of a drug search, the patrol stripped naked the bar's patrons and confiscated money and cell phones. The patrol repeated the same operation 2 days later at Moulin Rouge, an inexpensive popular Douala hotel.

In efforts to combat highwaymen, Colonel Pom and his special antigang gendarmerie unit used informants to identify and accuse persons of taking part in highway robbery (see Section 1.a.). Standards of proof for such accusations were nonexistent. Accusations occasionally have been used to pursue private grievances, and informants repeatedly have extorted money from innocent persons by threatening to accuse them of being bandits. The Douala Operational Command reportedly used informants in a similar fashion. These informants often were former criminals or prison guards, and were used to target criminals who then were summarily executed (see Section 1.a.).

At year's end, no compensation had been provided for houses that the Government destroyed along several of Yaounde's main roads in anticipation of the France-Africa Summit in January 2001. The Government also reportedly relocated Yaounde squatters, many of whom had mental disabilities, to the neighboring town of Mbalmayo for the duration of the summit. The squatters returned to Yaounde following the summit but were not allowed to reoccupy the site from which they were removed.

There have been accusations, particularly in the North and Far North Provinces, of traditional chiefs arbitrarily evicting persons from their land. There also were credible reports that security forces forced Baka out of their homes (see Section 5). No further information was available on the May 2001 forcible eviction of Feu Bouba Toumba in Maroua at year's end.

Section 2 Respect for Civil Liberties, Including:

a. Freedom of Speech and Press

The Constitution provides for freedom of speech and of the press; however, the Government continued to impose limits on these rights. The Penal Code's libel laws specify that defamation, abuse, contempt, and dissemination of false news are offenses punishable by prison terms and heavy fines. The Government sometimes invoked these statutes to silence criticism of the Government and officials.

Unlike in the previous year, no one was tried for defamation.

The Government publishes an official newspaper, the Cameroon Tribune. This paper occasionally implies criticism of the Government; however, its reporters did not report extensively on activities or political parties critical of the Government, overtly criticize the ruling party, or portray government programs in an unfavorable light.

While approximately 60 private newspapers were published, only an estimated 20 were published on a regular basis. Most continued to be highly critical of the Government and reported on controversial issues including corruption, human rights abuses, and economic policies. Journalists continued to be critical of the Government; however, some journalists practiced self-censorship.

Despite the large number of newspapers in the country, the influence of print media on the average person was minimal. Circulation was low, distribution was problematic outside of Yaounde and Douala, and prices were high. Consequently, print media reached only a tiny percentage of the population, most notably the urban elite.

The Government frequently prosecuted its critics in the print media through criminal libel laws. These laws authorized the Government, at its discretion and request of the plaintiff, to criminalize a civil libel suit or to initiate a criminal libel suit in cases of alleged libel against the President and other high government officials. There were no new cases of libel during the year; however, the Government continued to pursue libel cases from previous years.

The Government largely ceased to interfere with private newspaper distribution or seize print runs of private newspapers; however, security forces continued to restrict press freedom by harassing or abusing private print media journalists. The Douala-based French-language publication *Le Front Independent* and the Littoral Province Office of Taxation reportedly negotiated an undisclosed deal during the year, and the newspaper remained open at year's end.

There were fewer cases of harassment, abuse, and arrests of journalists reported than during the previous year.

On March 1, the Littoral Province police chief in Douala arrested Peter William Mandio, publisher of the newspaper *Le Front Independent*, and transferred him to the General Security office in Yaounde. Although the police did not charge Mandio formally, press reports suggested he was arrested because of a story published disclosing a love affair between a senior official at the Presidency and a senior female civil servant. It also was alleged the arrest was due to his membership in the National Collective against Impunity (CNI), a civil association started in connection with the Bepanda 9 case. During Mandio's arrest, the police searched his office and seized certain documents. The Ministry of Communication, the Ministry of Justice, and the Union of Central African Newspaper Publishers (UEPAC) criticized the arrest and requested Mandio's immediate release. He subsequently was released.

On April 14, Yaounde police stormed the Abbia Movie Theater and seized the movie *Braquages*. The police claimed to be acting on instructions from the DGSN. The theater owner said the seizure was illegal because the movie had been sanctioned by the National Censorship Commission. According to press reports, the DGSN seized the movie because it inappropriately corresponded with the launching of Operation Harmattan. Abbia management's attempts to retrieve the film had not been successful by year's end.

There were no further developments on the following 2001 cases: the July arrest and detention of journalists Robert Harris, Mindja Meka, and Samuel Zang Des Joies; the July reported threat, harassment, arrest, and detention of Florent Ndjiki, Pierre Clement Tjomb, and Francois Bikoro; the August arrest and detention of journalist George Baongla; the August assault on journalist Remy Ngomo; and the October summoning and detention of Jean Marc Soboth, editor of *La Nouvelle Expression*.

There were no known developments in the 2000 case of Severin Tchounkeu, publisher of the Douala-based French-language tri-weekly, *La Nouvelle Expression*.

Radio remained the most important medium for reaching most citizens. There were approximately 2 million radios in the country. Television was less pervasive but still more influential than print media.

Rural radio stations must submit an application to broadcast but were exempt from paying fees. Potential commercial radio and television broadcasters must submit a licensing application and pay a fee when the application is approved. The annual licensing fees potentially were prohibitive: \$15,600 (10 million CFA francs) for radio broadcasters; \$73,000 (50 million CFA francs) for local television stations; and \$146,000 (100 million CFA francs) for national television stations. The Ministry of Communication has received more than 100 applications from potential broadcasters. Five Yaounde-based private radio stations that previously had been broadcasting illegally and submitted applications to be licensed still had not received licenses at year's end. A small number of radio stations previously broadcasting illegally, including Radio Soleil, which broadcast from the Muslim quarter of Yaounde, did not apply for licenses, claiming the fees were exorbitant. The Government continued to allow these stations to broadcast. Although it has not obtained a license, Magic FM broadcast daily and had a wide audience. Radio Star and Radio Ventas still were not broadcasting at year's end.

There were several low-power, rural community radio stations funded primarily by foreign countries with extremely limited broadcast range. These stations, which broadcast educational programs to small audiences, were not allowed to discuss politics. The law permits broadcasting of foreign news services but requires the foreigners to partner with a national station. The British Broadcasting Company (BBC) and Radio France International (RFI) broadcast in partnership with state-owned CRTV. During the year, the Government continued to allow the reception of international cable and satellite television broadcasts.

The state-owned CRTV broadcast on both television and radio and was the only officially recognized and fully licensed broadcaster in the country. The Government levied taxes on all registered taxpaying citizens in order to finance CRTV programming, which allowed CRTV a distinct advantage over new independent broadcasters.

Like the Cameroon Tribune, CRTV provided broad reporting of CPDM activities, while giving relatively little attention to the political opposition. CRTV management, which repeatedly has instructed CRTV staff to ensure that government views prevailed at all times, in the past punished CRTV journalists who criticized government policy.

CRTV television and radio programming included a weekly program, *Direct Expression*, which ostensibly fulfilled the Government's legal obligation to provide an opportunity for all political parties represented in the National Assembly to present their views. However, during the program, CRTV continued to restrict the freedom of speech of the SDF by occasionally censoring and significantly shortening proposed SDF programming.

In January Francis Wete, Deputy General Manager of CRTV, informed the leaders of opposition parties represented in the National Assembly that the program *Political Space* would be suspended during the African Nations Soccer Cup Finals and would resume on February 12. The suspension resulted in strong protest from the SDF insisting that soccer should not be given precedence over the country's politics.

High-tech communications, including the Internet, e-mail, and satellite phones were not widely available or heavily utilized; however, a few cybercafes provided occasional Internet or e-mail access in some urban areas. There were at least six domestic Internet service providers, some of which were privately owned. The Government has not attempted to restrict or monitor these forms of communication.

Although there were no legal restrictions on academic freedom, state security informants operated on university campuses. Many professors believed that participation in opposition political parties could affect adversely their professional opportunities and advancement. Free political discussion at the University of Yaounde was hindered by the presence of armed government security forces, and some university students were harassed. On May 27, gendarmes stormed a Yaounde II University dormitory located in the Yaounde suburb of Soa and arrested five students (Jean Bruno Tagne, Alain Tayo, Vincent Chatue, Theodore Datchoua, and Josiane Fotsing) who were members of a student group that had voiced grievances against the administration. The University failed to validate some of the students' previous courses, which barred them from registering for the third year curriculum. The students passed out anti-University literature and subsequently became suspects in March and June arson incidents that destroyed University property. The students were held in police custody for 2 days and released pending further interrogation by the prosecutor. There were no new developments at year's end.

b. Freedom of Peaceful Assembly and Association

The law provides for freedom of assembly; however, the Government restricted this right in practice. The law requires organizers of public meetings, demonstrations, or processions to notify officials in advance but does not require prior government approval of public assemblies and does not authorize the Government to suppress public assemblies that it has not approved in advance. However, officials routinely have asserted that this provision of the Penal Code implicitly authorized the Government to grant or deny permission for public assembly. Consequently, the Government often has not granted permits for assemblies organized by persons or groups critical of the Government and repeatedly used force to suppress public assemblies for which it has not issued permits.

There was a ban on SCNC activities from September 28 to October 10 in the Northwest and Southwest Provinces. There were no other bans on public rallies or marches during the year.

Security forces disrupted attempts by the SCNC to hold demonstrations on October 1 in Bamenda and Mamfe. There were no other reports that security forces forcibly disrupted demonstrations during the year.

On January 17, Oliver Nyuki, one of the demonstrators who was shot during the October 2001 SCNC demonstration in Kumbo, North West Province, died of his wounds.

No action reportedly was taken against the members of the security forces who forcibly dispersed demonstrations in 2001 and in 2000.

The law provides for freedom of association, and the Government generally respected this right in practice; however, there were some exceptions. The conditions for government recognition of a political party, a prerequisite for many political activities, were not onerous. More than 150 political parties operated legally, together with a large and growing number of civic associations.

c. Freedom of Religion

The Constitution provides for freedom of religion, and the Government generally respected this right in practice; however, there were some exceptions.

In general the Law on Religious Congregations governs relations between the Government and religious groups. Religious groups must be approved and registered with the Ministry of Territorial Administration to function legally; there were no reports that the Government refused to register any group. It was illegal for a religious group to

operate without official recognition, but the law prescribes no specific penalties for doing so. The approval process usually takes several years, due primarily to administrative delays. The only religious groups known to be registered were Christian and Muslim groups and the Baha'i Faith; additional groups may be registered. The Ministry stated that the number of registered religious denominations was 38. The Government did not register traditional religious groups on the grounds that the practice of traditional religion was a private concern observed by members of a particular ethnic or kinship group or the residents of a particular locality.

Government officials disapproved of and questioned criticism of the Government by religious institutions and leaders; however, there were no reports that officials used force to suppress such criticism.

The sites and personnel of religious institutions were not exempt from the human rights abuses committed by government security forces; however, there were fewer reports of such abuse than in previous years.

The practice of witchcraft is a criminal offense under the law; however, individuals generally were prosecuted for this offense only in conjunction with another offense, such as murder. Witchcraft traditionally has been a common explanation for diseases of unknown cause.

On March 25, 6-year-old Manuella Cynthia Selam Tiave allegedly was tortured and killed by her mother and two other members of the Malla'a sect. The alleged purpose of the "session" was to follow the prescription of the sect's goddess and rid the girl of a demon that possessed her soul. In early April, the Prefet of Wouri Division banned the Malla'a sect because of the alleged murder.

On July 26, the GSO, a special Yaounde police unit, arrested 21-year-old Robert Ndoumbe Elimbi for the April 2001 murder of Appolinaire Ndi, a parish priest in the Yaounde diocese. Elimbi remained in detention at year's end.

There were no developments in the May 2001 case of the shooting death of Father Henri Djeneka.

In the northern provinces, especially in rural areas, societal discrimination by Muslims against persons who practiced traditional indigenous religions was strong and widespread. Some Christians in rural areas of the north complained of discrimination by Muslims; however, no specific incidents or violence stemming from religious discrimination were reported, and the reported discrimination may reflect ethnic as much as religious differences.

For a more detailed discussion see the [2002 International Religious Freedom Report \(//2009-2017.state.gov/j/drl/rls/irf/2002/\)](https://2009-2017.state.gov/j/drl/rls/irf/2002/).

d. Freedom of Movement within the Country, Foreign Travel, Emigration, and Repatriation

The law provides for these rights; however, in practice security forces routinely impeded domestic travel.

Roadblocks and checkpoints manned by security forces have proliferated in cities and most highways making road travel both time-consuming and costly, since extortion of small bribes was commonplace at these checkpoints. Police frequently stopped travelers to check identification documents, vehicle registrations, and tax receipts as security and immigration control measures. During the year, security forces injured persons they thought were evading checkpoints. For example, on April 10, a gendarme shot 32-year-old Francis Akondi Ndanle, a Bamenda, North West Province, taxi driver that he thought was trying to evade a checkpoint. Although the gendarme was not arrested, the North West Gendarmerie Legion conducted an investigation, the results of which were unknown at year's end.

There were credible reports that police arrested and beat individuals who failed to carry their identification cards (see Section 1.f.).

During the year, authorities confiscated the passports of several human rights activists (see Section 4). For example, on June 16, Douala airport police confiscated the passport, national identification card, and driving license of human rights activist and publisher of Le Messenger newspaper, Pius Njawe, when he returned from a trip to England. No justification was given. On June 19, Njawe's papers were returned to him.

There were no curfews imposed during the year.

The law provides for the granting of asylum and refugee status in accordance with the 1951 U.N. Convention Relating to the Status of Refugees and its 1967 Protocol. The Government cooperated with the office of the U.N. High Commissioner for Refugees (UNHCR) and other humanitarian organizations in assisting refugees. The Government provided first asylum to persons who arrived at the border without documentation but who could show a valid claim to refugee status. In February approximately 21,000 Fulanis fleeing Nigeria entered the country. Approximately 5,000 to 6,000 Chadians were repatriated during the year. In November the UNHCR reported a total of 56,000 refugees, including 39,000 Chadians and 15,000 Nigerians. Other refugees mainly were from Rwanda, Burundi, and the Democratic Republic of the Congo, with small numbers from Liberia, Sudan, and Ethiopia. The Government accepted refugees for resettlement who were granted refugee status by the UNHCR.

The UNHCR office in Gabon was responsible for refugees. However, in early May, UNHCR West and Central Africa Bureau Chief Bah Thierno Oumar stated that the UNHCR intended to reopen its office in the country following the flow of more than 21,000 refugees fleeing ethnic unrest in Nigeria's Taraba State. The office was expected to reopen in early 2003 (see Section 4).

Some illegal immigrants were subjected to harsh treatment and imprisonment. Communities of Nigerians and Chadians often were the targets of police and gendarme harassment. During raids members of the security forces often extorted money from those who did not have regular residence permits or those who did not have valid receipts for store merchandise.

There were no confirmed reports of the forced return of persons to a country where they feared persecution.

Section 3 Respect for Political Rights: The Right of Citizens to Change Their Government

The Constitution provides that citizens have the right to change their government; however, dominance of the political process by the President and his party severely limited the ability of citizens to exercise this right. President Paul Biya has controlled the Government since 1982 and led the ruling CPDM party since 1985. Both international and domestic observers widely criticized and viewed as fraudulent the 1997 presidential and legislative elections. In these elections, administered by the Ministry of Territorial Administration, members of largely pro-opposition ethnic groups and inhabitants of largely pro-opposition localities effectively were prevented from registering and voting, registration and vote counting procedures were not transparent, a public announcement of results was delayed, and the number of votes cast in some pro-government areas exceeded the adult population.

The 1996 amendments to the 1972 Constitution retained a strongly centralized system of power based on presidential authority; however, the amendments imposed a limit of two 7-year terms on the President. They provided for the creation of a partially elected (70 percent) and partially appointed (30 percent) Senate along with the creation of a similarly constituted set of provincial assemblies with limited power over local affairs. The Senate and

regional council amendments were not yet implemented by year's end. In the National Assembly, no bills other than government bills have been enacted since 1991, although the Assembly sometimes has not enacted legislation proposed by the Government.

Elections were held by balloting that officially was described as secret but permitted voters to leave the polling place with evidence of how they voted. At polling places on election day, registered citizens received a package containing one card for each candidate. While alone inside a closed booth, citizens chose a ballot and sealed it into an envelope. Citizens then deposited the sealed envelope into a ballot box outside the booth. In previous elections, citizens could not dispose of their ballots privately; however, during the legislative and municipal elections, polling officials provided trash bags so that voters could dispose of unused ballots privately before exiting the closed booth.

President Biya's October 1997 reelection was marred by serious procedural flaws as well as a boycott by the three major opposition parties. While the boycott made the outcome a foregone conclusion, most observers nonetheless considered the election to be neither free nor fair. Election irregularities especially were egregious in opposition strongholds where boycotting opposition activists were not present to monitor voting procedures. The Supreme Court declared President Biya the winner with 92.57 percent of the vote, and the UNDP, which previously had been an opposition party, joined the CPDM in a coalition government that included a faction of the UPC party.

The President's control over the country's administrative apparatus was extensive. The President appoints all Ministers including the Prime Minister. On August 24, President Biya reshuffled his cabinet to bring in 18 new ministers, 16 of whom were CPDM members. The President also directly appoints the governors of each of the 10 provinces. The governors in turn wield considerable power in the electoral process, interpreting and implementing the laws. The President also has the power to appoint important lower level members of the 58 provincial administrative structures, including the senior divisional officers, the divisional officers, and the district chiefs. The governors and senior divisional officers wield considerable authority within the areas under their jurisdiction, including the authority to ban political meetings that they deem likely to threaten public order (see Section 2.b.). They also may detain persons for renewable periods of 15 days to combat banditry and other security threats (see Section 1.d.).

The right of citizens to choose their local governments remained circumscribed. The Government has increased greatly the number of municipalities run by presidentially appointed delegates, who have authority over elected mayors. Delegate-run cities included most of the provincial capitals and some division capitals in pro-opposition provinces; however, this practice was nonexistent in the southern provinces, which tended to support the CPDM. However, in municipalities with elected mayors, local autonomy was limited since elected local governments relied on the central Government for most of their revenue and administrative personnel.

In 2001 the President signed a law that provides for the creation of the National Election Observatory (NEO) to supervise electoral procedure from the registration of voters to the collection of reports after the polls; all polling stations were expected to have a representative from the NEO. The law also provides that the NEO should have a presidentially appointed national office to appoint local offices at the levels of provinces, divisions, subdivisions, and districts. A presidential decree appointed the NEO's members in October 2001. The President postponed scheduled January municipal elections to June, ostensibly to give the NEO time to ensure free and fair elections. The NEO demonstrated a high level of political independence, facilitated voter registration, and encouraged free media access for opposition candidates. The President postponed the elections for another week after the opening of polls on June 23 since the administration failed to distribute electoral materials.

Legislative and municipal elections were held on June 30. The postponement of the elections contributed to low voter turnout. The ruling CPDM gained seats in municipal councils and in the National Assembly, it won 150 of 180 seats. The election results largely reflected the will of the people; however, there was much disorganization and some fraud. The Catholic Church, which observed the elections along with NEO, reported several election irregularities, including corruption, ghost polling stations, and discriminatory voter registration. NEO also admitted to administrative deficiencies in voter registration. Following the election, six opposition parties reported massive fraud and boycotted the municipal councils and the National Assembly. On July 18, the Supreme Court annulled legislative election results in nine divisions, in which the CPDM had won eight seats. The Court rescheduled elections in these divisions to occur within 60 days; they took place on September 15. On September 7, the Court also annulled the results for municipal elections in 17 districts due to violence, consisting mostly of fighting between political party members and polling station or ruling party officials, looting, and intimidation in those elections that largely were won by the CPDM.

There were no laws that specifically prohibit women or members of minorities from participating in government, the political process, or other areas of public life. Women held 16 of 180 seats in the National Assembly, 3 of 50 cabinet posts, and a few of the higher offices within the major political parties, including the CPDM.

Many of the key members of the Government were drawn from the President's own Bulu/Beti ethnic group, as were disproportionately large numbers of military officers and CPDM officials. Members of some of the other 200 ethnic groups held 39 cabinet seats, compared with 16 cabinet positions held by members of the President's ethnic group. The Biya Government has proven particularly intolerant of opposition from within its Beti/Bulu ethnic-regional base in the Center Province.

Section 4 Governmental Attitude Regarding International and Nongovernmental Investigation of Alleged Violations of Human Rights

A number of domestic and international human rights groups generally operated without government restriction, investigating and publishing findings on human rights cases; however, government officials repeatedly impeded the effectiveness of human rights NGOs during the year by limiting access to prisoners, refusing to share information, and increasingly threatening and using violence against personnel of human rights NGOs (see Section 1.d.). The activities of virtually all of these groups were limited by a shortage of funds and trained personnel. Observers have criticized the country's NGO laws for giving the Government loopholes with which it could deny authorization to operate or eliminate NGOs by decree.

Domestic human rights NGOs included the National League for Human Rights, the Organization for Human Rights and Freedoms, the Association of Women Against Violence, the Cameroonian Association of Female Jurists, the Cameroonian Association for Children's Rights, Conscience Africaine (Nouveaux Droits de l'Homme), the Movement for the Difference of Human Rights and Liberties, the Human Rights Defense Group (HRDG), the National Association of Nontribalists and Nonracists, the Committee of Action for Women's and Children's Rights, the Human Rights Clinic and Education Center, the Association of Women against Violence (ALVF), the Cameroon National Association for Family Welfare, Tribes Without Frontiers, the Association for the Promotion of Communal Initiatives, and the League for Rights and Freedoms. Many of these groups held seminars and workshops on various aspects of human rights.

On January 16, security forces from the National Center for External Research arrested Abdoulaye Math, President of the Movement for the Defense of Freedom and Human Rights, in Yaounde. Math was arrested on his way to Ireland, where he was scheduled to deliver a speech on human rights in Cameroon. He was detained for 5 hours and

his passport was confiscated. On September 28, members of the gendarmerie arrested Albert Mukong, former executive director of the HRDG in Ayukaba, Southwest Province (see Section 1.d.).

In late January, six international NGOs, Lawyers without Borders, the International Federation of Human Rights Leagues, the International Federation of the Action of Christians for the Abolition of Torture, Agir Ensemble, Reporters without Borders, and the World Organization Against Torture traveled to the country to investigate reported egregious acts perpetrated by the Operational Command. While they were able to meet with local NGOs and a representative of the government's NCHRF, the group had no other contacts with government officials.

In June Mary Robinson, the U.N. High Commissioner for Human Rights visited the country. Robinson held meetings with Prime Minister Peter Mafany Musonge and other government officials. She also inaugurated the Central African Sub-regional Center for Human Rights in Yaounde.

The government-established NCHRF, although hampered by a shortage of funds, conducted a number of investigations into human rights abuses, visited prisons, and organized several human rights seminars aimed at judicial officials, security personnel, and other government officers. Although the Commission infrequently criticized the Government's human rights abuses publicly, its staff intervened with government officials in specific cases of human rights harassment by security forces, attempted to stop Friday arrests (see Section 1.d.), and attempted to obtain medical attention for jailed suspects in specific cases. The law prohibits the NCHRF from publishing information on specific human rights cases; however, it may and does submit reports on specific alleged abuses to the authorities directly involved, along with recommendations for improving conditions or punishing violators. In April the NCHRF sent a team to Bafoussam to investigate the alleged disappearance of nine bandits who were detained in gendarmerie cells (see Section 1.b.).

The UNHCR, which ceased operations in the country in December 2001, was scheduled to reopen an office in early 2003 (see Section 2.d.).

Section 5 Discrimination Based on Race, Sex, Disability, Language, or Social Status

The Constitution does not explicitly forbid discrimination based on race, language, or social status. The Constitution prohibits discrimination based on sex and mandates that "everyone has equal rights and obligations;" however, the Government did not enforce these provisions effectively.

Women

Domestic violence against women was common. Women's rights' advocates reported that the law does not impose effective penalties against men who commit acts of domestic violence. There were no gender-specific assault laws, despite the fact that women were the predominant victims of domestic violence. Spousal abuse was not a legal ground for divorce. In cases of sexual assault, a victim's family or village often imposed direct, summary punishment on the suspected perpetrator through extralegal means, ranging from destruction of property to beating. While there were no reliable statistics on violence against women, a large number of newspaper reports indicated that the phenomenon was widespread.

Female genital mutilation (FGM) was not practiced widely. However, it continued to be practiced in 3 of the 10 provinces, including some areas of Far North, Eastern, and Southwest Provinces. Internal migration contributed to the spread of FGM to different parts of the country. The majority of FGM procedures were clitorectomies; however, the severest form of FGM, infibulation, was performed in the Kajifu region of the Southwest Province. FGM usually

was practiced on infants and preadolescent girls. The Government has criticized the practice; however, no law prohibits FGM. The ALVF conducted a program in Maroua to assist female victims of FGM and their families and to educate local populations.

Despite constitutional provisions recognizing women's rights, women did not enjoy the same rights and privileges as men. Civil law theoretically provides equal status and rights for men and women; however, no legal definition of discrimination exists, and some points of civil law were prejudicial to women. The law allows a husband to oppose his wife's right to work in a separate profession if the protest is made in the interest of the household and the family. While the law gives a woman the freedom to organize her own business, the law allows a husband to end his wife's commercial activity by notifying the clerk of commerce tribunal of his opposition based upon the family's interest. Partly for this reason, some employers required a husband's permission before hiring female employees.

Civil law offered a more equal standard than customary law, which was far more discriminatory against women, since in many regions a woman customarily was regarded as the property of her husband. Because of the importance attached to customs and traditions, laws protecting women often were not respected. Despite the law that fixes a minimum age of 15 years for a bride, many families married young girls by the age of 12 years. In the customary law of some ethnic groups, husbands not only maintained complete control over family property, but also could divorce their wives in a traditional court without being required to provide either verifiable justification or alimony. Polygyny was permitted by law and tradition, but polyandry was not. In cases of divorce, the husband's wishes determined the custody of children over the age of 6. While a man may be convicted of adultery only if the sexual act takes place in his home, a female may be convicted without respect to venue.

Traditional law normally governed the extent to which a woman may inherit from her husband in the absence of a will, and traditions varied from group to group. In many traditional societies, custom grants greater authority and benefit to male heirs than to female heirs. Women also faced the issue of forced marriage; in some regions, girls' parents could and did give girls away in marriage without the bride's consent. Often the husband, who could be many years older than his bride, paid his wife's parents a "bride price." Since a price had been paid, the girl was considered the property of the husband. When a married man died, his widow often was unable to collect any inheritance, since she herself was considered part of the man's property. Often the widow was forced to marry one of the deceased's brothers. Refusal meant that she had to repay the bride price in full and leave the family compound. In the northern provinces, some Lamibe (traditional rulers) reportedly prevented their wives and concubines from leaving the palace. The lack of a national legal code covering such family issues often left women defenseless against these male-oriented customs.

Children

The Constitution provides for a child's right to education, and schooling was mandatory through the age of 14 years. The Government took measures during the year to improve access to schools. Since parents had to pay uniform and book fees for primary school, and because tuition and other fees for secondary education remained costly despite the elimination of tuition fees for public elementary schools, education largely was unaffordable for many children. According to statistics published in September in the Cameroon Tribune, approximately 4.5 million children, or 85 percent of all children, were enrolled in school; however, school enrollment varied widely by region. In the Far North Province, it was reported that well below 50 percent of children attended school; the majority of attendees were boys.

Though illegal, in practice girls continued to suffer from discrimination and access to education throughout the country. The gap in school attendance was 14 percent nationally and 34 percent in the two most northern provinces. This problem, which especially was acute in rural areas, resulted in higher levels of illiteracy among women than men.

The exact degree of familial child abuse was not known; however, the problem was one of several issues targeted by children's rights organizations. During a crime wave in the country's largest cities of Yaounde and Douala, newspaper reports often cited children as victims of kidnaping, mutilation, and even infanticide. There were several credible stories of mothers (usually young, unemployed, and unmarried) abandoning their newborns in streets, garbage cans, and pit toilets. In 2001 the Yaounde-based Center for Helpless Children harbored 24 abandoned or abused children, a small fraction of the suspected cases of abused, abandoned, or neglected children.

Early marriage was prevalent in the northern provinces of Adamawa and North, but especially characteristic of the remote Far North Province where many young women faced severe health risks from pregnancies as early as 13. Authorities were becoming increasingly concerned about this situation. In March the Governor of Adamawa Province called on parents to stop giving young girls in marriage to men old enough to be their grandparents.

FGM was performed primarily on young girls (see Section 5, Women).

There were reports of child prostitution and trafficking in children during the year (see Section 6.f.).

Persons with Disabilities

The law provides certain rights to persons with disabilities, including access to public institutions, medical treatment, and education. The Government was obliged to bear part of the educational expense of persons with disabilities, to employ them where possible, and to provide them with public assistance when necessary; however, the Government rarely respected these rights. There were few facilities for persons with disabilities and little public assistance of any kind. Lack of facilities and care for persons with mental disabilities particularly was acute. In recent years, the Government reportedly has reduced the share of its expenditures benefiting persons with disabilities and has terminated subsidies to NGOs that helped them. Society largely tended to treat those with disabilities as misfits, and many felt that providing assistance was the responsibility of churches or foreign NGOs. The law does not mandate special access provisions to private buildings and facilities for persons with disabilities.

In August 2001, the Littoral National Education provincial officials threatened to expel members of the Cooperative of the Handicapped Persons of Cameroon from a building in which they were believed to be squatting. The Cooperative claimed the structure officially was given to them by the Provincial Delegation of the Ministry of Social Affairs. The National Education officials ultimately ceased the threats.

In September 2001, several blind persons blocked the road junction in Yaounde between the Ministry of Education and the Prime Minister's office asking to speak to the Prime Minister about the eviction of several blind persons from a building in which they were living illegally. The Prime Minister refused to meet with the group, and the group was expelled from the building early in the year.

Indigenous Persons

A population of approximately 50,000 to 100,000 Baka (Pygmies), a term that encompasses several different ethnic groups, primarily resided (and were the earliest known inhabitants) in the forested areas of the South and East provinces. While no legal discrimination exists, other groups often treated the Baka as inferior and sometimes subjected them to unfair and exploitative labor practices. There were credible reports that logging companies and security forces forced Baka out of their homes. Baka reportedly continued to complain that the forests they inhabit were being logged without fair compensation. Some observers believe that sustained logging was destroying the Baka's unique, forest-oriented belief system, forcing them to adapt their traditional social and economic systems to a more rigid modern society similar to their Bantu neighbors. Local Baka along the proposed path of the Chad-Cameroon pipeline continued to complain that they were not compensated fairly for their land. Others alleged that they have been cheated of their compensation by persons posing as Baka representatives.

An estimated 95 percent of Baka did not have national identity cards; most Baka could not afford to provide the necessary documentation in order to obtain national identity cards, which were required to vote in national elections.

The Government made some efforts toward improving the condition of Baka and making them full citizens. In January the Ministry of Social Affairs, the ILO, and a group of NGOs met in Abong-Mbang, Upper Nyong Division, East Province, to put in place strategies for the socio-economic advancement of the Baka. A second conference was held in November, but no concrete results were reported by year's end.

National/Racial/Ethnic Minorities

The population was divided into more than 200 ethnic groups, among which there were frequent and credible allegations of discrimination. Ethnic groups commonly gave preferential treatment to fellow ethnic group members both in business and social practices.

Members of President Biya's Bulu ethnic group and of the closely related Beti groups of southern parts of the country held key positions and disproportionately were represented in government, civil service, state-owned businesses, the security forces, the military, and the ruling CPDM party. The large size and centralized character of the public sector long has been perceived widely to favor these two groups. Prospective economic and political liberalization was perceived as potentially harmful to these groups and potentially favorable to other groups such as the large Bamileke and Anglophone ethnic-cultural groups of the west whose members tended to be more active in private commerce and industry.

Northern areas of the country suffered from ethnic tensions between the Fulani (or Peuhl) and the Kirdi. The Kirdi remained socially, educationally, and economically disadvantaged relative to the Fulani in the three northern provinces. Traditional Fulani rulers, called Lamibe, continued to wield great power over their subjects, often including Kirdi, sometimes subjecting them to tithing and forced labor. Slavery still practiced in northern parts of the country was reported largely to be Fulani enslavement of Kirdi. Although the UNDP party was based largely in the Fulani community, the ruling CPDM party has a history representing Fulani as well as Beti-Bulu interests.

Since 1990 natives of the two Anglophone provinces, the Northwest and Southwest Provinces, have tended to support opposition party SDF and have suffered disproportionately from human rights violations committed by the Government and its security forces. The Anglophone community largely was underrepresented in the public sector. Anglophones generally believed that they had not received a fair share of public sector goods and services within their two provinces. Many residents of the Anglophone region sought greater freedom, equality of opportunity, and better government by regaining regional autonomy rather than through national political reform and have formed several quasi-political organizations in pursuit of their goals.

At least one Anglophone group, the SCNC, advocates secession from the country. Subsequent to strident secessionist activity in 1999, the SCNC has calmed considerably; however, the Government continued to hold some SCNC activists or suspected SCNC supporters in detention without trial. The opposition SDF party, whose base of support resides in the Anglophone provinces, reiterated its commitment to pursue a nonviolent political struggle toward the restoration of a federal republic.

Members of the country's large community of Nigerian immigrants often complained of discrimination and abuse by government officials (see Section 2.d.). Government officials repeatedly have announced crackdowns on undocumented Nigerian immigrants.

Section 6 Worker Rights

a. The Right of Association

The law allows workers both to form and join trade unions; however, it imposes numerous restrictions. The law requires that unions register with the Government, permitting groups of at least 20 workers to organize a union by submitting a constitution, internal regulations, and non-conviction certifications for each founding member. For unions in the private sector, the Government requires registration with the Ministry of Labor, Employment and Social Insurance. Unions for public sector workers must register with the Ministry of Territorial Administration. The law does not permit the creation of a union that includes both public and private sector workers.

The Government indicated that it remits certification within 1 month of union application; however, in practice independent unions, especially in the public sector, have found it difficult to obtain registration. In addition, the requirement for union registration apparently contradicts the International Labor Organization (ILO) Convention 87, which the country signed in 1960. The Convention states that unions have the right to exist through declaration not through government recognition or registration. Registered unions were subject to government interference. The Government chose the unions with which it would bargain; some independent unions accused the Government of creating small non-representative unions amenable to government positions and with which it could negotiate more easily. Some sections of labor law have not taken effect because the presidency had not issued implementing decrees.

There were two trade union confederations: The Confederation of Cameroonian Trade Unions (CCTU) and the Union of Free Trade Unions of Cameroon (USLC). In 2000 the Ministry of Labor, Employment and Social Insurance publicly began to support a faction of the CCTU; however, a court declared illegal an August 2001 "unity" conference attended by 400 members of the faction. The court stated that only the nationally (and legally) recognized body of CCTU had the power to convoke CCTU conferences.

The law prohibits antiunion discrimination, and employers guilty of such discrimination were subject to fines up to approximately \$1,600 (1 million CFA francs). However, employers found guilty were not required to compensate the workers against whom they discriminated or to reinstate fired workers. The Ministry of Labor has not reported any complaints of such discrimination during recent years; however, one organizer of the Union for Telecommunications Workers has claimed that his state-owned company demoted him due to union activism. The Confederation of Independent Trade Unions of Cameroon at SONEL complained to the ILO in 1998, on behalf of staff delegate Olongo, that he was dismissed in 1988 because of his union activity, that the Court of Appeals' ruling in favor of his reinstatement was suspended by the Supreme Court, and that he had been unable to obtain a final judgment. During the year, the ILO Committee of Experts noted that 14 years after the dismissal, Mr. Olongo still was waiting for some form of compensation and urged the Government to take all necessary measures to ensure that he receive

full compensation for his wrongful dismissal.

The CCTU was a member of the Organization of African Trade Unions and the International Confederation of Free Trade Unions. The USLC was a member of the Organization of African Trade Unions.

b. The Right to Organize and Bargain Collectively

The law provides for collective bargaining between workers and management as well as between labor federations and business associations in each sector of the economy; however, no formal collective bargaining negotiations have taken place since 1996. When labor disputes arose, the Government chose the labor union with which it would negotiate, selectively excluding some labor representatives. Once agreements were negotiated, there was no mechanism to enforce implementation; some agreements between the Government and labor unions were ignored by the Government subsequent to negotiation.

The Labor Code explicitly recognizes workers' right to strike but only after mandatory arbitration. Arbitration decisions legally were not enforceable and could be overturned or simply ignored by the Government. On March 26, the Minister of Labor held a meeting with the Labor National Consultative Committee in an attempt to streamline the proceedings for convoking a strike, which requires amending Articles 157 through 165 of the Labor Code. Meeting results were not made public at year's end.

The law provides for the protection of workers engaged in legal strikes and prohibits retribution against them; however, these provisions of the law do not apply to civil servants, employees of the penitentiary system, or workers responsible for national security. Instead of strikes, civil servants were required to negotiate grievances directly with the minister of the appropriate department in addition to the Minister of Labor.

Labor unrest continued during the year. There were strikes by workers in various state-owned companies as well as the public service sector. Secondary teachers observed sporadic strikes throughout the 2001-2002 academic year. For several years, teachers demanded promised salary bonuses, and typically the Government agreed that the bonuses will come at the end of the year, then did not follow through on the promise.

From December 2001 to March, Cameroonian workers of Doba Logistics, a company involved in the construction of the Chad-Cameroon pipeline, staged a strike demanding better pay. The workers complained of discrimination because they believed that their expatriate counterparts received higher salaries. On March 10, management agreed to a salary increase.

On August 19, police officers in Douala's Bonamoussadi neighborhood arrested two taxi drivers, 30-year-old Jacques Ngagnang and 27-year-old Clement Casimir Ewondo, on charges of attempting to provoke a strike. On the morning of August 19, Ngagnang, Ewondo, and other taxi drivers started a strike in protest of the new Ministry of Transportation requirement that all taxi drivers must carry a badge in their vehicles in order to be easily identified by their clients and to increase taxi security. The taxi drivers thought the cost of the badge, \$8 (5,000 CFA francs) was too high. On August 21, a Douala prosecutor interrogated the striking taxi driver group and subsequently ordered their detention and transfer to the New Bell Central prison where they awaited trial at year's end. Various press reports have stated that Douala's Wouri Division Prefet (Senior Divisional Officer) ordered the driver's detention.

On August 19, in Garoua, North Province, bus and bush-taxi owners observed a 24-hour strike to protest police harassment.

There was an industrial free trade zone, but the Government has not granted approval to any firms to take part in the zone. Free trade zone employers were exempt from some provisions of the Labor Code but must respect all internationally recognized worker rights.

c. Prohibition of Forced or Bonded Labor

The law prohibits forced or bonded labor; however, it occurred in practice. The authorities continued to allow prison inmates to be contracted out to private employers or used as communal labor for municipal public works.

There were credible reports that slavery continued to be practiced in northern parts of the country, including in the Lamidat of Rey Bouba, a traditional kingdom in the North Province (see Section 5). In the South and East Provinces, some Baka (Pygmies), including children, continued to be subjected to unfair and exploitative labor practices by landowners, working on the landowners' farms during harvest seasons without payment (see Section 5).

The Government does not expressly prohibit forced and bonded labor by children; there were reports that these practices occurred (see Section 6.f.).

d. Status of Child Labor Practices and Minimum Age for Employment

The law generally protects children in the field of labor and education and specifies penalties ranging from fines to imprisonment for infringement. In April 2001, President Biya ratified ILO Convention 138 that sets a minimum age of 14 for child employment. The law also bans night work and enumerates tasks that cannot be performed legally by children between the ages of 14 and 18 years. These tasks included moving heavy weights, dangerous and unhealthy tasks, working in confined areas, and prostitution. The law also states that a child's workday cannot exceed 8 hours. Employers were required to train children between the ages of 14 and 18, and work contracts must contain a training provision for minors. The law prohibits children from working before 6 a.m. or after midnight, though this prohibition was not enforced effectively.

According to a 2000 ILO study conducted in conjunction with local NGOs and the Ministry of Labor, child labor remained a serious problem, although the Government has made some progress toward its amelioration. In February the Government, along with the African Soccer Confederation (CAF), promoted the radio-televised "red-card" campaign against child labor. In the nation's major cities of Yaounde, Douala, and Bamenda the ILO estimated in 2000 that 40 percent of employed children were girls, 7 percent were less than 12 years of age, and 60 percent had dropped out of primary school.

The Ministry of Social Affairs and the Ministry of Labor were responsible for enforcing existing child labor laws through site inspections of registered businesses; however, lack of resources inhibited an effective inspection program. Moreover, the legal prohibitions do not include family chores, which in many instances were beyond a child's capacity. According to the ILO study, child labor existed chiefly in urban areas and in the informal sector such as street vending, car washing, agricultural work, and domestic service. An increasing number of children worked as household help and some children were involved in prostitution. In the north of the country, there were credible reports that children from needy homes were placed with other families to do household work for pay.

In rural areas, many children began work at an early age on family farms. Parents viewed child labor as both a tradition and a rite of passage. Often, relatives employed rural youth, especially girls, as domestic helpers. Many urban street vendors were less than 14 years of age.

On May 27, President Biya ratified ILO Convention 182 on the worst forms of child labor.

The Government does not prohibit forced and bonded labor by children, and there were reports that it occurred in practice (see Section 6.f.).

e. Acceptable Conditions of Work

Under the law, the Ministry of Labor was responsible for setting a single minimum wage nationally applicable in all sectors. The minimum wage was approximately \$40 (23,514 CFA francs) per month. The wage did not provide for a decent standard of living for an average worker and family.

The law establishes a standard workweek of 40 hours in public and private nonagricultural firms and 48 hours in agricultural and related activities. The law mandates at least 24 consecutive hours of weekly rest.

The Government sets health and safety standards. Ministry of Labor inspectors and occupational health physicians were responsible for monitoring these standards; however, they lacked the resources for a comprehensive inspection program. There was no specific legislation permitting workers to extricate themselves from dangerous work situations without jeopardizing continued employment. Illegal foreign workers were not able to claim legal protections.

f. Trafficking in Persons

The law provides that any person who engages in any form of trafficking in persons shall be punished by 10 to 20 years of imprisonment; however, trafficking was a problem. The court also may impose a forfeiture penalty on any person who engages in trafficking. The country was a source, transit, and destination point for internationally trafficked persons; trafficking also occurred within the country. In 2000 the Government signed, but has not yet ratified, a U.N.-sponsored protocol on trafficking in persons.

The Government has criticized the practice of trafficking in persons, and the Ministry of Labor, Employment, and Social Insurance was primarily responsible for fighting trafficking. However, that Ministry severely was underfunded. There were no known cases of prosecution of traffickers or protection of victims by year's end. The Government established an interagency committee to combat trafficking and has developed a program to find and return trafficked children. The budget for the launching of the Government's interagency action plan to fight trafficking was scheduled for a vote during the June 2001 budget session in the National Assembly; however, that chapter was omitted in the draft budget. Unless the President is able to appropriate funding, implementation will continue to be delayed.

During the year, in collaboration with the ILO, the Government hired a consultant to conduct a new investigation assessing the level of national trafficking. In September the ILO launched a study assessing forced labor.

An ILO study conducted in 2000 in Yaounde, Douala, and Bamenda, revealed that trafficking accounted for 84 percent of child laborers (see Section 6.d.). In most cases, intermediaries presented themselves as businessmen, approaching parents with large families or custodians of orphans and promising to assist the child with education or professional training. The intermediary paid parents an average of \$8 (6,000 CFA francs) before taking the child and then transporting him or her to a city where the intermediary would subject the child to forced labor for little remuneration. In 4 out of 10 cases, the child was a foreigner transported to the country for labor. The report also indicated that Cameroon was a transit country for regional traffickers as well, transporting children between Nigeria,

Benin, Niger, Chad, Togo, the Republic of the Congo, and the Central African Republic for indentured or domestic servitude, farm labor, and sexual exploitation. Citizens also were trafficked to South Africa. Children also were trafficked within the country. Parents sometimes offered their young daughters to the Lamido (chief) of the North Province of the Rey Bouba as gifts.

While there has been no published extensive study on trafficking in adult persons, anecdotal evidence from the NCHRF and others indicates that trafficking primarily in women also may exist. Women were "hired" into hubs of prostitution, often in Europe. The method for trafficking women usually involved a marriage proposition by a foreign businessman. The woman was inducted into servitude upon arrival at a foreign destination.

The Government was working with local and international NGOs to provide temporary shelter and assistance to victims of trafficking. In August the Catholic Relief Service designed the project "Nkeng-Shalom" to combat corruption in local schools that led to child prostitution.

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